RUN OF SHOW AND SPEAKER SCRIPT

Estate Planning under the Indian Succession Act, 1925

With the live enactment of Gurdial Singh v. Jagir Kaur (Supreme Court, 17 July 2025, 2025 INSC 866)

MSF07 Trevor Dcosta · MSF13 Deepesh Gupta · MSF20 Sahil Nathwani · MSF24 Tejas Patil

Part A. Running order

The whole presentation runs about 19 minutes before questions. The hearing is slides 6 to 8 and takes about 10 minutes including the vote and debrief. Shorter versions are in Part E.

Slide	Topic	Speaker	Time
1	Title	Trevor	0:45
2	The Act at a glance: with a will, or without	Trevor	1:15
3	Which succession law governs the family?	Trevor	1:30
4	Is probate the gate to enforcing a will?	Deepesh	1:30
5	What makes a will validly executed	Deepesh	1:30
6	Gurdial Singh v. Jagir Kaur (cast and facts)	Sahil	1:00
7	Two sides before the bench (live hearing, Scenes 1 to 4)	Trevor, Deepesh, Sahil, Tejas	6:00
8	Appeals dismissed: the will fails (Scene 5 and debrief)	Trevor, Deepesh, then Sahil	2:30
9	A four-point estate planning checklist	Tejas	1:30
10	Thank you, Questions?	All four	1:00+

Cast and staging

Role	Played by	Position
Presiding Judge	Trevor	Seated, centre. Taps the table to open and close.
Second Judge	Deepesh	Seated, beside. Controls the slide clicker in the hearing.
Counsel for the appellant (the nephew, Gurdial Singh)	Sahil	Standing, left of the bench.
Counsel for the respondent (the widow, Jagir Kaur)	Tejas	Standing, right of the bench.

The one question before the court: is leaving a wife out of a will, without any reason, a suspicious circumstance that shows the testator's free will was missing?

Part B. Speaker script, slides 1 to 6

Square brackets are cues, not words to say. Each speaker's last line hands over to the next.

Slide 1. Title

Trevor · about 0:45 · Stand centre. Pause after the opening question.

Good afternoon, everyone. Let me start with a question. Suppose you write a will, sign it, get it witnessed and registered, and do everything the law asks. Can it still fail? [Pause. Look around the room.] Hold that thought. We will answer it live.

We are Trevor, Deepesh, Sahil and Tejas, and our topic is estate planning under the Indian Succession Act, 1925. We chose four court cases. Each answers one practical question: which law governs the family, whether probate is needed, what makes a will valid, and what happens when a will is challenged.

In the middle of the presentation we will stage a Supreme Court hearing from 2025, and you will be the audience in the courtroom. First, the framework.

Slide 2. The Act at a glance: with a will, or without

Trevor · about 1:15 · Point to the left card, then the right card.

The Act deals with two situations: a person dies without a will, or with one.

Without a will, the Act's default rules decide who inherits. Under Section 33, a widow takes one-third of the estate if there are lineal descendants, one-half if only other kindred survive, and the whole estate if there are neither. Parsis are excluded from this chapter by Section 31.

With a will, the question changes. The will must be validly executed under Section 63, and in many cases it must be probated under Section 213 before the family can enforce it.

Our four cases follow that path. Mary Roy asks which law governs. Clarence Pais covers probate. Gopal Krishan covers execution. And Gurdial Singh, which we will enact, shows what happens when a will is challenged. Let us start with Mary Roy.

Slide 3. Which succession law governs the family?

Trevor · about 1:30 · Read the three cards left to right: problem, ruling, lesson.

Mary Roy is one of the best-known Christian succession cases in India. Syrian Christians in the old state of Travancore were governed by the Travancore Christian Succession Act, under which a daughter received only a token share compared with her brothers.

Mary Roy challenged this. On 24 February 1986 the Supreme Court held that the Travancore Act had stood repealed since 1951, when the Indian Succession Act was extended to the former state. Note what the Court did not do: it decided the case on repeal, and did not rule on whether the old Act was unconstitutional. The result is that Christian daughters inherit equally with sons.

The planning lesson is practical. Families often assume a particular law governs them, and the assumption can be wrong. Confirm which succession law applies before you draft anything. Deepesh will take us to probate.

Slide 4. Is probate the gate to enforcing a will?

Deepesh · about 1:30 · Step forward as Trevor hands over.

Thank you, Trevor. Our second question is about probate. Section 213 says that nobody can establish rights as an executor or legatee under a will in court unless a court has granted probate or letters of administration.

In Clarence Pais, Indian Christians argued this was discriminatory, because other communities were largely exempt. They pointed to Kerala, which had exempted Christians by state amendment. The Supreme Court dismissed the petitions on 22 February 2001. Reading Sections 213 and 57 together, it found that Section 213(1) also applies to Parsis, and to Hindus, Buddhists, Sikhs and Jains within the old presidency towns. So it is not exclusive to Christians. The differences are historical, not religious.

For planning, probate is how a will gets enforced, and whether it is compulsory depends on the testator's community and on where the will was made or the property is located. For Indian Christians it applies across India except Kerala.

Slide 5. What makes a will validly executed

Deepesh · about 1:30 · Tick off the checklist on the left, then the ruling on the right.

Our third case is about execution. Section 63 lists what a will needs. The testator signs or puts a mark on it, or someone signs at his direction. The signature must show he meant it as a will. And at least two witnesses must attest it, each having seen him sign or received his personal acknowledgment of the signature.

In Gopal Krishan v. Daulat Ram, the testator left his one-fourth share in a plot of land to his nephew. The High Court read the word "or" in Section 63(c) as if it were "and", and demanded an extra requirement. The Supreme Court corrected that. The word is disjunctive, and a witness who saw the testator sign or affix his mark satisfies the statute.

The lesson: follow Section 63 exactly and the will is safe on form. But is form enough? Sahil will show us.

Slide 6. Gurdial Singh v. Jagir Kaur (cast and facts)

Sahil · about 1:00 · Judges take their seats while Sahil speaks. Take the audience vote. Click to slide 7 on the last line.

Thank you, Deepesh. Everything so far has been about form: tick the Section 63 boxes and the will stands. Now let us test that.

We will enact the Supreme Court hearing in Gurdial Singh v. Jagir Kaur, decided on 17 July 2025. In one line: Maya Singh, a retired army havaldar, left 67 kanals and 4 marlas of land to his nephew in a registered will, and his widow, Jagir Kaur, said the will could not stand. The slide has the rest of the facts, and the bench will read them out.

Our cast: Trevor and Deepesh are the bench. I argue for the nephew, who says the will is genuine. Tejas argues for the widow.

Before we begin, a show of hands. The will is registered. The scribe and a witness proved it, and cross-examination did not shake them. The one thing against it is that it leaves everything to the nephew and never mentions the wife. Who thinks the will stands? [Count.] Who thinks it falls? [Count.] Remember your vote.

[CUE: Click to slide 7. Counsel stand at their marks. Trevor taps the table.]

Part C. Enactment script (slides 7 and 8)

About 8 minutes. Slide 7 stays up for Scenes 1 to 4. Deepesh clicks to slide 8 when Trevor says "The court will confer." Speak to the bench, not the audience.

Scene 1: Opening and facts (1 minute)

Slide 7. Counsel stand at their marks. The judges are already seated. The presiding judge taps the table twice.

Presiding Judge (Trevor)	Order, order. The court is in session. We hear Civil Appeal Numbers 3509 and 3510 of 2010, Gurdial Singh against Jagir Kaur. Learned counsel, I will state the facts. Correct me if I am wrong.
Presiding Judge (Trevor)	Maya Singh, a retired army havaldar, owned 67 kanals and 4 marlas of land. On 16 May 1991 he made a registered will leaving that land to his nephew, the appellant. He died on 10 November 1991. In 1992 his widow had the land mutated in her own name. The nephew sued on the will.
Counsel for the Appellant (Sahil)	That is correct, My Lord.
Counsel for the Respondent (Tejas)	Correct, My Lord.
Presiding Judge (Trevor)	The Trial Court and the First Appellate Court upheld the will, and also held that the respondent is the lawful wife. The High Court reversed, holding that the will's silence about the wife made it suspicious. The nephew is now before us.
Second Judge (Deepesh)	The question is narrow. Does the omission of the wife, with no reason given, show that the testator lacked a free disposing mind? Counsel for the appellant, you may begin.

Scene 2: Counsel for the nephew (2 minutes)

Slide 7. Sahil steps forward half a pace. Speak to the bench, not the audience. Short pauses between points.

Counsel for the Appellant (Sahil)	May it please the court. This is a registered will, and its execution has been proved as the law requires. Section 63 of the Indian Succession Act and Section 68 of the Evidence Act ask for at least one attesting witness. We examined the scribe and an attesting witness.
Counsel for the Appellant (Sahil)	The scribe, PW-2 Surinder Kumar, said he wrote the will on Maya Singh's instructions and read it back to him. Maya Singh signed in front of the attesting witnesses, Chanan Singh and Pesra Singh. Chanan Singh, PW-3, added that the will was read over to the testator again before the Sub-Registrar. Their evidence was not shaken in cross-examination.
Presiding Judge (Trevor)	Counsel, is execution itself disputed?
Counsel for the Appellant (Sahil)	Not seriously, My Lord. The respondent's case rests on one point: her name is not in the will.
Counsel for the Appellant (Sahil)	But a will exists to change the ordinary line of succession. Leaving out a natural heir is not, by itself, a suspicious circumstance.
Counsel for the Appellant (Sahil)	Nor was the widow left without provision. The money Maya Singh left went to her, and she is entitled to his pension. The Trial Court and the First Appellate Court both accepted this. The High Court should not have disturbed those concurrent findings. We ask that the appeals be allowed.

Scene 3: Counsel for the widow (2 minutes)

Slide 7. Tejas steps forward as Sahil steps back and sits or stands at ease. Sahil does not react to Tejas's points.

Counsel for the Respondent (Tejas)	May it please the court. Proof of signature and registration are not the end of the matter. The person relying on a will must also remove every suspicious circumstance and satisfy the court that the testator acted of his own free will.
Counsel for the Respondent (Tejas)	Jagir Kaur was Maya Singh's lawfully wedded wife. She told the court she lived with him until his death. He accepted her as his wife throughout: he nominated her, and she draws his pension. Nothing on record shows the marriage was bitter.
Counsel for the Respondent (Tejas)	Now look at the will itself. It is short and cryptic. It gives everything to the nephew. It never mentions his wife and gives no reason for leaving her out. A man who has lived with his wife for years does not erase her from his own will without a word.
Second Judge (Deepesh)	Counsel, does the law require a testator to mention his wife?
Counsel for the Respondent (Tejas)	No, My Lord. But silence is not neutral when everything else points the same way.
Counsel for the Respondent (Tejas)	There is more. The appellant did not only propound this will. He went further and denied that she was ever Maya Singh's wife. When you read the will beside that denial, the silence in the will is not the testator's voice. It is the appellant's. The High Court was right, and we ask that the appeals be dismissed.

Scene 4: Questions from the bench (1 minute)

Slide 7, then Deepesh clicks to slide 8 on the last line. Judges lean forward. Questions are short and sharp. Counsel answer standing, without notes if possible.

Second Judge (Deepesh) to appellant's counsel	The will says nothing about the testator's wife. You say that does not matter. Why would a man who kept his wife as his nominee for pension leave no word about her in his will?
Counsel for the Appellant (Sahil)	My Lord, the will says the nephew was taking care of the testator, and that is the reason it gives. A testator is not required to explain himself, and the courts below found the will genuine.
Presiding Judge (Trevor) to respondent's counsel	Disinheriting an heir is not, by itself, a ground to reject a will. What else, in the facts, convinces you this will was not made freely?
Counsel for the Respondent (Tejas)	My Lord, no single fact decides it. It is the combination: the will's silence about the wife, no reason for leaving her out, and the appellant's own denial that she was his uncle's wife. Taken together, they point to the appellant's influence.
Presiding Judge (Trevor)	Thank you, counsel. The court will confer.

Scene 5: The verdict (2 minutes)

Slide 8. The judges lean together and murmur silently for about five seconds. Then the presiding judge speaks. Counsel stand still.

Presiding Judge (Trevor)	We have heard both sides. A will is proved like any other document, but subject to Section 63 of the Indian Succession Act and Section 68 of the Evidence Act, which means at least one attesting witness must be examined.

Second Judge (Deepesh)	Because the testator is no longer alive, the burden is heavier. The person relying on the will must prove it was executed, and must also dispel every suspicious circumstance that casts doubt on the testator's free disposing mind. Suspicions must be real and germane, not the fancies of a doubting mind.
Presiding Judge (Trevor)	We accept that leaving out a natural heir is not, by itself, a suspicious circumstance, because a will is made to change the usual line of succession. But the court must look at all the circumstances together.
Second Judge (Deepesh)	Here, the will is cryptic. It is silent about the wife's existence and gives no reason for leaving her out. The evidence shows she lived with the testator until his death, and nothing shows the marriage was bitter. And the appellant denied her status as a wife. Erasing a wife's very existence from the will is the mark of the propounder, not of the testator.
Presiding Judge (Trevor)	The money left to her and her pension were not shown to be a reasonable provision that would satisfy a prudent mind. We hold that the testator's free will was vitiated by the appellant's undue influence. The appeals are dismissed.

[The presiding judge taps the table. Everyone freezes for three seconds, then steps out of role. Sahil steps forward for the debrief (see slide 8).]

Accuracy note: the facts, arguments and verdict track the Supreme Court's judgment (17 July 2025, 2025 INSC 866). The exact speeches, the judges' short questions and the stage directions are scripted for performance and are not quotations from the record. Say "scripted for this enactment" if asked.

Part D. Closing slides (8 to 10)

Slide 8. Appeals dismissed: the will fails (Scene 5 and debrief)

Trevor, Deepesh, then Sahil · about 2:30 · Judges deliver the verdict (Scene 5). Then Sahil steps out of role for the debrief.

Scene 5, the verdict: about 2 minutes (Trevor and Deepesh), from the enactment script. Last line: "The appeals are dismissed." Trevor taps the table. Everyone freezes for three seconds, then steps out of role.

DEBRIEF (Sahil, about 30 seconds): "That is the judgment. Back to your votes: who called it? Every Section 63 box was ticked. Signed, witnessed, registered, and the witnesses were not shaken. The will still failed, because of what it left out and because the nephew himself denied the wife's status. The court did not say you cannot leave out an heir. It said it weighs all the circumstances together, and the person relying on the will must dispel the suspicion."

HANDOFF: "Tejas will turn that into a checklist."

Slide 9. A four-point estate planning checklist

Tejas · about 1:30 · Walk down the table row by row.

Let us put the four cases into a checklist.

Step one: confirm which succession law governs the family. Mary Roy shows that an assumption about the governing law can be wrong.

Step two: draft the will to meet Section 63, with witnesses who actually see the signing or receive the testator's acknowledgment. That is Gopal Krishan.

Step three: name every natural heir, and explain any exclusion. That is Gurdial Singh. The point is not that a spouse can never be left out. The court said leaving out an heir is not suspicious by itself. The point is that silence invites suspicion, and reasons answer it.

Step four: plan the probate route early. Clarence Pais confirms that probate is how a will gets enforced where the law requires it.

If you remember one line: a registered, properly witnessed will can still fail if it reads like someone else's will. This is a class presentation and not legal advice. A real estate plan needs a lawyer who knows the family's circumstances. Thank you.

Slide 10. Thank you, Questions?

All four · about 1:00+ · Stand together. Answer from the Q&A prep sheet (Part E). The first speaker to catch the question answers; pass to the case owner if it is about their case.

Thank you for listening. We are happy to take questions.

Case owners: Mary Roy and the framework, Trevor. Clarence Pais and Gopal Krishan, Deepesh. The hearing for the nephew, Sahil. The hearing for the widow and the checklist, Tejas.

If someone asks where to read the judgments: Mary Roy ((1986) 2 SCC 209, decided 24 February 1986; summary at https://www.livelaw.in/amp/news-updates/mary-roy-petitioner-in-landmark-verdict-giving-equal-rights-for-daughters-in-christian-succession-passes-away-208078). Clarence Pais ((2001) 4 SCC 325; https://future.indiankanoon.org/doc/1422425). Gopal Krishan v. Daulat Ram (2025 INSC 18; summary at https://lawfoyer.in/gopal-krishan-ors-v-daulat-ram-ors-2025-1-s-c-r-93-2025-insc-18/). Gurdial Singh v. Jagir Kaur (2025 INSC 866;

https://api.sci.gov.in/supremecourt/2010/10063/10063_2010_2_1501_62335_Judgement_17-Jul-2025.pdf). The Section 33 summary is from the bare Act at https://www.advocatekhoj.com/library/bareacts/indiansuccession/6.php.

We read the Gurdial Singh judgment itself. The other holdings were checked against summaries, so verify them in the full text before quoting.

Part E. Q&A prep, time cuts and rehearsal

Likely questions

Does this mean a will can never leave out a wife or an heir?

No. The Court said leaving out a natural heir is not suspicious by itself, because a will exists to change the usual line of succession. It weighed all the circumstances together: the silence about the wife, no reason, her living with him until death, and the nephew's denial of her status.

If the will met Section 63, why did it fail?

Section 63 and Section 68 of the Evidence Act are about proving execution. The person relying on the will must also dispel suspicious circumstances and show a free disposing mind. Form is necessary, not sufficient.

Why did the nephew's denial of the marriage matter?

The Court read it with the will's silence about the wife. Together they pointed to the propounder's hand rather than the testator's free will.

Why were the money and the pension not enough?

The Court held they were not shown to be a reasonable provision that would satisfy a prudent mind. Do not go beyond that sentence unless you have re-read the judgment.

What would you do differently when drafting?

These are planning ideas drawn from the cases, not holdings: confirm the governing law, follow Section 63 exactly, name the spouse and other natural heirs, state reasons for any exclusion, and plan the probate route early. A lawyer should tailor all of it.

Is the hearing a real transcript?

No. The facts, arguments and verdict follow the Supreme Court's judgment of 17 July 2025 (2025 INSC 866), but the exact speeches, the judges' short questions and the stage directions are scripted for this enactment.

Is probate compulsory?

It depends on the testator's community and on where the will was made or the property is located. Under Clarence Pais, Section 213(1) is not exclusive to Christians. For Indian Christians it applies across India except Kerala.

Why did the Supreme Court interfere with concurrent findings of the lower courts?

Do not improvise. Read that part of the judgment before the presentation and answer from it. If asked cold, say: "We would need to check the judgment's reasoning on that point."

If you are short of time

- Trim to about 14 minutes: drop the audience vote (about 45 seconds), cut Scene 4 to one question each (30 seconds), and shorten slide 2 to the with-a-will, without-a-will contrast (45 seconds).
- Trim to about 12 minutes: also drop the two bench interruptions in Scenes 2 and 3, and merge Scenes 2 and 3 into one-minute arguments, keeping the "registered and proved", "silence is not neutral" and "appellant's denial" lines.
- Never cut: the issue statement, the Section 63 and Section 68 burden line, the "all circumstances together" line in Scene 5, and the step three link on slide 9.

Rehearsal checklist

- Read the Gurdial Singh judgment once (link on slide 10 notes). Mark every line in Scenes 1 to 5 that you are unsure about.

- Run the enactment twice standing up, with a timer. Target 8 minutes. Cut the interruptions first if you are over.
- Assign the clicker. Sahil clicks 6 to 7. Deepesh clicks 7 to 8 on "The court will confer." Trevor clicks 8 to 9 after the debrief.
- Props: two chairs and a table for the bench, a gavel or a book to tap, a printed script for each speaker, a pen to count the vote.
- Marks: judges seated centre. Sahil standing left, Tejas standing right, both facing the bench at a slight angle toward the audience.
- Speak to the bench in the hearing, and to the audience in the slides. Slow down on the section numbers.
- Fix the [Date] placeholder on slide 1 before you present.
- If anyone asks: say "scripted for this enactment" and that the facts, arguments and verdict follow the judgment.

Check before presenting

- Slide 1 shows a [Date] placeholder. Fill it in.
- The facts in Scene 1 and the money and pension details in Scenes 2 to 4 come from your original script. Check them against the judgment (paragraph numbers would help in Q&A).
- Section 31 and Section 33 as summarised on slide 2 come from the bare Act. Section 33 applies to those the Act covers on intestacy. Hindus, Muslims, Sikhs, Buddhists and Jains follow their own personal laws, so do not present Section 33 as a general rule for every family. Confirm before you answer a question on this.
- Clarence Pais, Gopal Krishan and Mary Roy were checked against summaries. Re-check the Section 57 and presidency-town point and the Kerala exemption in the full text.
- The two bench interruptions (Scene 2 and Scene 3) are new lines written for pacing. They do not add facts, but they are not in the judgment.